

**CHAPTER x.**

An Act to confer further powers upon the Ilfracombe Gas Company and for other purposes.

A.D. 1915.

[19th May 1915.]

WHEREAS by the Ilfracombe Gas Act 1872 (in this Act referred to as "the Act of 1872") the Ilfracombe Gas Company (in this Act referred to as "the Company") were incorporated upon the dissolution of the Ilfracombe Gas Light and Coke Company for the purpose of making and maintaining gasworks and supplying gas within the parish of Ilfracombe in the county of Devon:

35 & 36 Vict.
c. xxxiii.

And whereas by the Ilfracombe Gas Act 1896 (in this Act referred to as "the Act of 1896") further powers were conferred upon the Company and their limits of supply were extended so as to include the parishes of Morthoe Berrynarbor and Combmartin otherwise Combe Martin in the said county:

59 Vict.
c. xxv.

And whereas by the Act of 1896 the then existing shares in the capital of the Company (in respect of which the Company had received by way of premium the sum of one thousand and fifteen pounds) were converted into seventeen thousand one hundred and ninety pounds preference stock bearing a preferential dividend of five pounds per centum per annum and eight thousand seven hundred and thirty-four pounds eight shillings consolidated ordinary stock entitled to dividends not exceeding five pounds per centum per annum amounting in the whole to the sum of twenty-five thousand nine hundred and twenty-four pounds eight shillings and the Company were authorised to raise additional capital not exceeding in the whole forty thousand pounds by the creation and issue of consolidated ordinary stock:

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And whereas in addition to the said sums of seventeen thousand one hundred and ninety pounds preference stock and eight thousand seven hundred and thirty-four pounds eight shillings consolidated ordinary stock the Company have issued consolidated ordinary stock to the amount of sixteen thousand five hundred pounds and have received by way of premium in respect thereof the sum of one thousand and sixty-three pounds one shilling and sixpence:

And whereas the Company were authorised by the Act of 1872 to borrow on mortgage the sum of four thousand pounds and by the Act of 1896 a further sum of thirteen thousand three hundred and thirty-three pounds:

And whereas the Company have raised by borrowing the sum of nine thousand three hundred and fifty pounds and it is expedient that they be authorised to borrow further money for the purposes of their undertaking:

And whereas it is expedient that new provisions be made with reference to the quality and testing of the gas supplied by the Company and that such further provisions be made with respect to the Company and their undertaking as are in this Act contained:

And whereas it is expedient that the Company be empowered to supply electricity for public and private purposes within the parish of Combe Martin:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short and
collective
titles.

1. This Act may be cited as the Ilfracombe Gas Act 1915 and this Act and the Acts of 1872 and 1896 may be cited together as the Ilfracombe Gas Acts 1872 to 1915.

Act divided
into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Calorific Power and Testing of Gas.

Part III.—Supply of Gas.

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Part IV.—Supply of Electricity.

Part V.—Financial Provisions and Borrowing Powers.

Part VI.—Miscellaneous.

3. This Act shall be deemed to be a special Act within the meaning of the Electric Lighting Acts 1882 to 1909 and the Electric Lighting (Clauses) Act 1899 so far as the provisions of those Acts are applicable to or incorporated by this Act.

Application
of Electric
Lighting
Acts.

4.—(1) The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (that is to say):—

Incorpora-
tion of gene-
ral Acts.

(A) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The borrowing of money by the Company on mortgage or bond;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

(B) Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

(C) Subject as hereinafter provided the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871;

(D) The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 except sections 5 23 83 and 84 thereof; and

(E) The Lands Clauses Acts (except the provisions with respect to the purchase and taking of lands otherwise than by agreement).

(2) The Gasworks Clauses Act 1847 incorporated with the Acts of 1872 and 1896 and this Act in its application to the Company shall be read as if in section 13 the words “or any premises” were inserted after the words “private building” and as if the words “Provided that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end

A.D. 1915. of that section and also from and after the thirty-first day of December one thousand nine hundred and sixteen as if—

(A) Sections 30 to 34 both inclusive were omitted therefrom; and

(B) In section 35 the words from “in case the whole” down to the words “have been paid” all inclusive were omitted therefrom and as though the expression “the prescribed rate” included the standard rate of dividend or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the special purposes fund.

Interpreta-
tion.

5. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression “the Company” means the Ilfracombe Gas Company;

The expression “the Act of 1872” means the Ilfracombe Gas Act 1872;

The expression “the Act of 1896” means the Ilfracombe Gas Act 1896;

The expression “limits of supply” means the limits within which the Company are for the time being authorised to supply gas;

The expression “area of supply” means the area within which the Company are authorised by this Act to supply electricity;

The expression “the gas undertaking” means the undertaking of the Company for the supply of gas as authorised by the Acts of 1872 and 1896 and this Act;

The expression “the electricity undertaking” means the undertaking of the Company for the supply of electricity as authorised by this Act;

The expression “the undertaking” includes the gas undertaking and the electricity undertaking;

The expression “calorific power” means the total heat value expressed in British thermal units;

The expression “British thermal units” means British thermal units gross per cubic foot of gas;

The expression "consolidated ordinary stock" means the consolidated ordinary stock which the Company were authorised to create and issue by section 30 (Conversion of shares) and section 34 (Power to Company to raise additional capital) of the Act of 1896; and

The expression "preference stock" means the preference stock which the Company were authorised to create and issue by section 30 (Conversion of shares) of the Act of 1896.

PART II.

CALORIFIC POWER AND TESTING OF GAS.

6.—(1) Within six months from the passing of this Act the Company shall provide at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them at such testing place similar to the apparatus for the time being prescribed by the Metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905.

Testing for
calorific
power.

(2) As from the date on which the Company shall have completed the provision of the apparatus for testing the calorific power the calorific power of the gas supplied by the Company shall be five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Company and sections 28 to 30 and 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

7.—(1) Not more than one testing for calorific power shall be made on any one day Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

Provisions as
to testing.

(2) The Company shall be entitled on each occasion of the testing of gas under the provisions of this section to be represented by some officer who shall not interfere in the testing.

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(3) The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

Penalties for
deficient
calorific
power.

8. If on any testing the calorific power of the gas supplied by the Company is found to be below the standard calorific power they shall be liable to the following penalties in respect of such deficiency (that is to say):—

Where the deficiency does not exceed fourteen British thermal units forty shillings :

Where the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds :

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Saving as to
penalties.

9. No penalty shall be incurred by the Company for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which the gas examiner reports or it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

PART III.

SUPPLY OF GAS.

Dividend
dependent
on price
charged.

10.—(1) From and after the thirty-first day of December one thousand nine hundred and sixteen the standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter other than a prepayment meter shall be three shillings and sixpence per thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the standard rate of dividend as follows :—

In respect of any half-year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company for that half-year shall in respect of each penny or part of a penny by which the

standard price shall have been so increased be reduced A.D. 1915.
below the standard rate of dividend by one shilling and
threepence on every one hundred pounds of consolidated
ordinary stock and so in proportion for any fraction of
one hundred pounds :

In respect of any half-year during the whole of which the
price charged by the Company shall have been one
penny or more below the standard price the dividend
payable by the Company for that half-year may in
respect of each penny by which the standard price shall
have been so reduced be increased above the standard
rate of dividend by one shilling and threepence upon
every one hundred pounds of consolidated ordinary stock
and so in proportion for any fraction of one hundred
pounds.

(2) If in any half-year the dividend payable on the
consolidated ordinary stock shall comprise a fractional amount
less than one quarter per centum the directors may in their
discretion add such fractional amount to the reserve fund or
may defer the payment of such fractional amount until the
payment of the next or some succeeding dividends and shall in
their discretion either add such fractional amount to and pay
the same with such succeeding dividends accordingly or add
the same to the reserve fund.

11. Notwithstanding anything contained in this or any
other Act relating to the Company the price to be charged by
the Company for a supply of gas may vary according to the
purposes for which the gas is supplied as may be agreed upon
between the Company and the person taking such supply
Provided that the Company shall not under the powers of this
section give any preferential price as between any consumers
who shall take a supply of gas for the same purpose under like
circumstances.

Power to
vary price
according to
purpose for
which gas is
supplied.

12.—(1) The Company may demand for any gas supplied
through a prepayment meter a not greater charge than for gas
supplied to private consumers within their limits of supply
through any other kind of meter or by any other method of
supply.

Charge for
gas supplied
by means of
prepayment
meters.

(2) The charge for the hire of any prepayment meter and
fittings to be used therewith shall be a sum of money calculated

A.D. 1915. according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove or in either of such cases at the rate of ten per centum per annum on the cost of the meter and fittings whichever shall be the higher.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

As to construction and placing of pipes &c. between mains and meters.

13. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building : A.D. 1915.

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

14. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Acts of 1872 and 1896 and this Act : Power to lay pipes in streets not dedicated to public use.

Provided that in respect of any such street which is situate within the urban district of Ilfracombe the urban district council of such district shall be deemed in addition to any other persons to be persons having the control or management

A.D. 1915. of such street for the purposes of the provisions of the Gasworks
 ——— Clauses Act 1847 with respect to the breaking up of streets for
 the purpose of laying pipes.

Power to
 lay pipes &c.
 for ancillary
 purposes.

15. The Company may lay down and repair take up alter or relay or renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their gas undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Minimum
 charge for
 gas laid on
 to premises
 having a
 supply of
 electricity or
 power gas.

16. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Company is taken through a meter having a nominal capacity of less than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Amending
 obligations
 as to supply
 of gas.

17. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting or domestic use in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes.

Company
 may refuse
 to supply

18. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was

supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. A.D. 1915.
gas in cer-
tain cases.

19. The power to enter premises and to remove pipes meters fittings or apparatus conferred on the Company by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Company shall not require to take a supply of gas from the Company or to hire from the Company all or any of the pipes meters fittings or apparatus belonging to the Company and let by them on hire to any former occupier of such premises. Power to
enter pre-
mises and
remove fit-
tings.

20.—(1) In any case in which the Company are by virtue of any enactment relating to their gas undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode
of cutting off
supplies.

Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

21. In any case in which in consequence of any default on the part of the occupier of any premises the Company shall have cut off the supply of gas to such premises (whether under the existing powers of the Company or under the powers conferred by this Act) and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under Occupier to
pay ex-
penses of
reconnecting
disconnected
supply.

A.D. 1915. — any obligation to supply gas to such occupier until he shall have paid such expenses.

Fittings not to be subject to distress and though fixed to premises to remain property of Company.

22.—(1) Subject as hereinafter provided any stoves ranges engines machines gas fittings meters pipes pillars lamp-posts lamps burners and other articles and things connected with gas-works or with the supply of gas (in this section referred to as “fittings”) let on hire by the Company under the provisions of the Act of 1872 or the Act of 1896 shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be.

(2) Subject as hereinafter provided all fittings let on hire by the Company as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Company Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Company shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Charges for special readings of meters.

23. The Company may levy and recover such charges as they think fit for taking the reading of any meter fixed in a house which is either in whole or in part let furnished at the request of and for the convenience of consumers at times other than the Company’s periodical readings such charges not to exceed the sum of sixpence per reading.

Anti-fluctuators for gas engines.

24. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper repair and in default of his so using or keeping such anti-fluctuator and valve in proper repair the Company may cease to supply gas to such consumer The Company shall have access to and be at liberty to take off

remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer. A.D. 1915.

25. If any person is required by the Company to give to them security in respect of any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Company shall pay interest at the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Company to pay interest on money deposited as security for gas.

PART IV.

SUPPLY OF ELECTRICITY.

26. The area within which the Company may supply electricity under this Act shall be and include the parish of Combe Martin in the rural district of Barnstaple in the county of Devon and that parish shall be deemed to be the area of supply within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with this Act and is hereinafter referred to as "the area of supply" and the Company may supply electricity within the area of supply for all public and private purposes. Area of supply of electricity.

27.—(1) The Company may appropriate and use for the purposes of the electricity undertaking the lands described in the First Schedule to this Act or any part of those lands and may thereon erect maintain work and use a station or stations for producing and generating transforming storing and distributing electricity with all such buildings engines batteries dynamos accumulators and other plant machinery apparatus works and conveniences as may be necessary or suitable for those purposes and may produce generate transform store use and supply such electricity accordingly. Power to use lands and erect generating station.

(2) The Company may appropriate and use for the said purposes any other lands acquired by them by virtue of the Act of 1872 or the Act of 1896 or any lands to be acquired by them under this Act but they shall not use any such lands for the purpose of constructing a generating station except with the consent of the Board of Trade and the Board of Trade shall not in any case give such consent except subject to and in

A.D. 1915. — accordance with the provisions of section 2 of the Electric Lighting Act 1909.

Power to
purchase
lands by
agreement.

28. The Company may for the purposes of the electricity undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the other lands which they are by this Act authorised to hold any lands and hereditaments not exceeding in the whole two acres which they may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products and generating electricity except the lands authorised to be so used by or under this or any other Act or Order affecting the undertaking.

Power to
sell and
lease lands.

29. The Company may sell and dispose of or may let on lease for such periods as they think fit any lands acquired by them by agreement and for the time being belonging to them and not at the time required for the purposes of the undertaking and any such sale disposal or lease may be for such consideration and subject to such reservations stipulations and conditions and generally upon such terms and conditions as the Company think fit and notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to the lands sold or disposed of by the Company under the powers of this section.

Power to
break up
street not
repairable by
local authority.

30. Subject to the provisions of the Electric Lighting Acts 1882 to 1909 and the schedule to the Electric Lighting (Clauses) Act 1899 the Company may break up for the purposes of the electricity undertaking the street not repairable by the local authority which is mentioned in the Second Schedule to this Act.

Power to
supply en-
gines motors
fittings &c.
for lighting
power and
other pur-
poses.

31. The Company may purchase provide supply sell and let on hire and may fix set up alter repair and remove but shall not manufacture engines motors accumulators services wires boxes switches transformers lamps meters fittings and other apparatus and appliances used for or in connection with the use of electricity for lighting and other purposes and may provide all materials and do all work necessary or proper in that behalf and may demand take and recover such remuneration in money or such rents or charges for and may make such terms and conditions with respect to the supply of such articles

and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Company as may be agreed on between the Company and the person to or for whom the same are supplied Provided that in the event of the electricity undertaking or any part thereof being purchased by the local authority the powers of this section shall not be transferred to such authority.

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32. Section 21 (subsection 1) of the schedule to the Electric Lighting (Clauses) Act 1899 in so far as it specifies a period within which the Company shall lay down distributing mains shall not apply to the Company but the Company shall before the expiration of three years after the commencement of this Part of this Act without being required to do so lay down suitable and sufficient distributing mains for the purposes of general supply throughout the part of the street mentioned in the Third Schedule to this Act Provided that the Board of Trade may from time to time extend such period for such further period as they may think fit Provided further that the Board of Trade may on the expiration of such period or extended periods as aforesaid if such mains mentioned in the Third Schedule to this Act are not then laid or evidence forthcoming of the bonâ fide intention of the Company to lay such mains on the representation of the local authority of the district within which the area of supply is situate revoke the powers of this Act in regard to the supply of electricity as to the whole or part of the area of supply and make such order as to payment by the Company of the costs of such representation as they think fit.

Mains &c.
to be laid
down.

33. The maximum prices to be charged by the Company for electricity supplied by them shall subject to alteration as in the schedule to the Electric Lighting (Clauses) Act 1899 provided be those stated in that behalf in the Fourth Schedule to this Act.

Maximum
prices.

34. The Company may upon the application of the owner or occupier of any premises within the area of supply abutting on or being erected in any street or road laid out but not repairable by the inhabitants at large or not dedicated to public use supply such premises with electrical energy and may lay down take up alter relay repair or renew in across or along or out of such street or road such electric lines and apparatus as may be requisite or proper for furnishing such supply and the

Power to lay
wires in pri-
vate streets.

A.D. 1915. — provisions of the Electric Lighting Acts 1882 to 1909 and of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof and to any works constructed or executed by the Company under the powers of this section.

Commence-
ment of this
Part of Act.

35. This Part of this Act shall come into force on a day to be fixed for that purpose by the Board of Trade after the termination of the present war. The day so fixed shall be the commencement of this Part of this Act.

PART V.

FINANCIAL PROVISIONS AND BORROWING POWERS.

Unissued
stock to be
sold by
auction or
tender.

36.—(1) All stock to be issued under the Act of 1896 shall be issued in accordance with the provisions of this section.

(2) All such stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

- (A) Notice of the intended sale shall be given in writing to the clerk of each district council whose district or any portion of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (C) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid

shall not be recognised unless it is in advance of the last preceding bid: A.D. 1915.

- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be disposed of by the directors at a price not less than the reserve price put upon the same for the purpose of sale by auction or tender or may be offered at the reserve price to the holders of consolidated ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

37. Except as by this Act provided the profits of the Company to be divided in respect of any year after the thirty-first day of December one thousand nine hundred and sixteen shall not exceed the following rates (that is to say):—

Profits of
Company
limited.
Standard
rate of divi-
dend.

On the consolidated ordinary stock the rate of five pounds in respect of every one hundred pounds of such stock or

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part thereof actually paid up or deemed to be paid up thereon (which rate is in this Act referred to as "the standard rate of dividend"):

On the preference stock the rate of five pounds in respect of every one hundred pounds of such stock or part thereof actually paid up or deemed to be paid up thereon.

Power to
create re-
serve fund.

38. Where in any year after the thirty-first day of December one thousand nine hundred and sixteen the dividend which may be paid by the Company on the consolidated ordinary stock shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the thirty-first day of December one thousand nine hundred and sixteen may be invested in any securities in which trustees are authorised by law to invest money or in such other securities as shall be authorised by a resolution of the Company other than the debentures or stocks of the Company or may be placed on deposit at interest with the Company's bankers and the dividends and income arising from such securities shall be invested in the same or the like securities or placed on deposit as aforesaid in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividends in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the consolidated ordinary stock of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Power to
create a spe-
cial purposes
fund.

39.—(1) As from the thirty-first day of December one thousand nine hundred and sixteen the directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Company including premiums to a fund to be called "the special purposes fund,"

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being— A.D. 1915.

(A) Expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(B) Expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Company including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

40. If in any year after the thirty-first day of December one thousand nine hundred and sixteen the clear profits of the undertaking (after appropriating and setting apart such sum or sums (if any) as may be determined upon under the powers of this Act to any fund or funds thereby authorised) amount to a larger sum than is sufficient to pay the dividends on the preference stock and the dividends at the authorised rate on the consolidated ordinary stock of the Company the excess shall be carried to the credit of the profit and loss (net revenue) account of the undertaking for the next following year: Application of excess of profits.

Provided that after allowing for the payment of such dividends the sum standing to the credit of such profit and loss (net revenue) account to be carried forward to the next following year shall not at any time exceed the amount required to pay one year's dividends at the authorised rates on the preference stock and consolidated ordinary stock of the Company.

41.—(1) The Company may at any time borrow on mortgage of their undertaking in respect of the preference stock and Power to borrow.

A.D. 1915. consolidated ordinary stock issued under section 30 (Conversion of shares) of the Act of 1896 and in addition to the sum of four thousand pounds already borrowed under the Act of 1872 any sum or sums not exceeding the sum of four thousand six hundred and forty-one pounds.

(2) The following provisions of the Act of 1896 shall with all necessary modifications extend and apply to the exercise of the additional powers of borrowing conferred upon the Company by this section as if the same were re-enacted in this Act (that is to say):—

Section 44 (Debenture stock);

Section 48 (Receipt in case of persons not sui juris);

Section 49 (Application of moneys).

Company
not to raise
or borrow
during con-
tinuance of
war.

42. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Company
not to con-
vert bor-
rowed money
into capital.

43. Notwithstanding anything contained in the Acts of 1872 and 1896 the provisions of the Companies Clauses Consolidation Act 1845 relating to the conversion of borrowed money into capital shall not apply to the moneys or any part thereof authorised to be borrowed on mortgage under the Acts of 1872 or 1896 or this Act.

Existing
mortgages
to have
priority.

44. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Repeal of
provisions of
Act of 1896
with respect
to appoint-
ment of
receiver.

45. The provisions of the Act of 1896 by which the mortgagees of the Company are empowered to enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have

been commenced under any such provision previous to the A.D. 1915.
passing of this Act.

46. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

For appoint-
ment of
receiver.

47. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock.

Mortgages
and deben-
ture stock
to have
priority over
other debts.

48. The directors may in any year declare and pay an interim half-yearly dividend out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed the amount of the authorised rate of dividend for that half-year.

Interim
dividend.

49. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of
transfer
books pre-
vious to
declaring
interim
dividend.

50. The Company may apply for all or any of the purposes of this Act to which capital is properly applicable any

Power to
apply funds.

A.D. 1915. money from time to time raised by them under the Acts of 1872 or 1896.

Separate
accounts for
gas and
electricity
under-
takings.

51. Separate capital and revenue accounts shall be kept of the gas undertaking and the electricity undertaking.

The gas undertaking and the electricity undertaking respectively shall be duly credited and debited with the receipts and payments exclusively attributable thereto.

The Company shall out of the capital moneys raised under this Act carry to the credit of the capital account of the gas undertaking the value of all land acquired for the purposes of that undertaking and used for the purposes of the electricity undertaking.

The expenses of direction and management and any expenses common to both the gas undertaking and the electricity undertaking shall be from time to time apportioned between them as nearly as conveniently practicable in proportion to the amount of capital for the time being expended on the gas undertaking and the electricity undertaking respectively.

PART VI.

MISCELLANEOUS.

Period of
error in de-
fective
meters.

52. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act or in the event of a meter of a construction and pattern approved by the Board of Trade used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges or charges for electricity as the case may be are recoverable by the Company.

Notice to
discontinue
supply of
gas or elec-
tricity.

53. A notice to the Company from a consumer for the discontinuance of a supply of gas or electricity shall not be of any effect unless it be in writing signed by or on behalf of

the consumer and be left at or sent by post to the office of the Company. A.D. 1915.

54. The qualification of a director shall be the possession in his own right of stock of the Company to the nominal amount of not less than two hundred pounds. Qualification of directors.

55. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office Any such person must have been the holder of the qualifying amount of stock for at least three months prior to his election In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner. Notice to be given of any person desirous to be elected as director of Company or of opposition to re-election.

56.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place. As to appointment of managing director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of these modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

57. The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the Auditors.

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proprietors of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold stock of the Company.

Power for
directors to
determine
remunera-
tion of
secretary.

58. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of the Company.

Power to
make super-
annuation
and other
allowances.

59. It shall be lawful for the directors of the Company to make superannuation and other allowances and to pay pensions to any officers servants or employees of the Company who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Company.

Profit
sharing.

60.—(1) The directors of the Company may with the sanction of a majority of the proprietors present and voting at an extraordinary general meeting of the Company prepare put in force and from time to time modify or alter a scheme enabling the workmen servants and employees of the Company (hereinafter called “employees”) or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking as part of the terms of remuneration for the services of any such employee.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen and shall be in writing and may be made on the part of the Company under the hands of any two directors of the Company or under the hand of the secretary of the Company or of any person from time to time appointed on that behalf by resolution of the board of directors of the Company.

Dwelling-
houses for
Company's
employees
offices show-
rooms &c.

61. The Company may purchase or take on lease houses cottages and buildings for persons in their employ and offices showrooms and other buildings for the purposes of their undertaking and may erect maintain and let any such buildings upon any lands for the time being belonging or leased to the Company.

Power to
directors to
subscribe to

62. The directors of the Company may subscribe or make donations to infirmaries and hospitals and to convalescent homes

and to other institutions and objects or to any exhibition and to the benevolent and sick funds of the employees of the Company and may for that purpose apply the funds and revenues of the Company.

A.D. 1915.
hospitals
&c.

63. Any notice to be served by the Company on a person supplied with gas or electricity shall be sufficiently authenticated by the signature of the secretary of the Company or other officer of the Company for the time being authorised by the directors thereof being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas or gas fittings or appliances or electricity or electrical fittings by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a pre-paid letter addressed to him by name at his last known or usual place of abode or business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentica-
tion and
service of
notices by
Company.

64. Where the payment of more than one sum by any person is due under this Act any summons or warrant issued for the purposes of this Act in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several sums
in one sum-
mons.

65. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

66. Proceedings for the recovery of any demand made under the authority of this Act or the Act of 1872 or the Act of 1896 or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction

Recovery of
demands.

A.D. 1915. in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Repeal of
certain sec-
tions of Acts
of 1872 and
1896.

67.—(1) As from the date of the passing of this Act the sections of the Acts of 1872 and 1896 of which the numbers and marginal notes are set forth in the First Part of the Fifth Schedule to this Act are hereby repealed.

(2) As from the thirty-first day of December one thousand nine hundred and sixteen the sections of the Act of 1896 of which the numbers and marginal notes are set forth in the first and second columns of the Second Part of the Fifth Schedule to this Act are hereby repealed to the extent mentioned in the third column thereof.

Crown
rights.

68. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Saving as to
general Acts.

69. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of Act.

70. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the foregoing Act.

A.D. 1915.

FIRST SCHEDULE.

LANDS FOR GENERATING STATION.

All that piece or parcel of land situate in the parish of Combe Martin in the rural district of Barnstaple in the county of Devon containing by admeasurement 2360 square yards or thereabouts and being part of the enclosure numbered 413 on the $25^1 00$ Ordnance map Devonshire sheet V. 3 (second edition 1904) and bounded on or towards the north by lands belonging or reputed to belong to William Delve on or towards the south by the River Umber on or towards the east in part by the road leading to Mansion Cottages in other part by the yard or garden attached to the said Mansion Cottages and in the remaining part by the enclosure numbered 415 on the said Ordnance map and on or towards the west by land being the remaining part of the said enclosure numbered 413 on the said Ordnance map.

SECOND SCHEDULE.

Street not repairable by the local authority which may be broken up by the Company in pursuance of the special powers granted by this Act:—

Parish of Combe Martin—

The street or road leading from the main street of Combe Martin to Mansion Cottages.

THIRD SCHEDULE.

Part of street throughout which the Company are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of three years after the passing of this Act:—

Parish of Combe Martin—

The main street of Combe Martin from the western boundary of the parish of Combe Martin at Newberry Hill to its junction with Corner Lane.

A.D. 1915.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Company charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Company charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Company under the Board of Trade regulations.

FIFTH SCHEDULE.

FIRST PART.

SECTIONS OF THE ACTS OF 1872 AND 1896 REPEALED AS FROM
THE PASSING OF THE FOREGOING ACT.

THE ACT OF 1872.

- 26 (Limiting dividend);
- 29 (Debenture stock);
- 30 (Interest on debenture stock to rank *pari passu* with interest on mortgages);
- 33 (Votes at general meetings);
- 35 (Qualification of directors).

THE ACT OF 1896.

A.D. 1915.
—

- 36 (New stock to be offered by auction or tender);
37 (Purchase money of capital sold by auction to be paid within three months);
38 (Notice to be given as to sale &c. of stock);
39 (New stock not sold by auction or tender to be offered to stockholders);
43 (As to conversion of borrowed money into capital);
60 (Discounts).
-

SECOND PART.
—SECTIONS OF THE ACT OF 1896 REPEALED AS FROM THE
31ST DAY OF DECEMBER 1916.

Section.	Marginal Note.	Extent of Repeal.
1.	2.	3.
33 63	(Profits of the Company limited) (Quality and price of gas) -	The whole section. The words ("and the Company may charge " for gas consumed by meter for private " consumption any price not exceeding " four shillings and sixpence for every " one thousand cubic feet consumed and " in proportion for any smaller quantity " consumed").

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